



**CA INTER MAY/SEP 26/JAN 27**

**GST**

**RETURNS**

**ONE SHOT**



# Chapter 15: Returns under GST

## GSTR-1 furnishing details of outward supplies [section 37]

### a) Person Liable to furnish details of outward supply

Every RP including casual registered person except the following:

- ✓ input service distributor (ISD)
- ✓ N RTP
- ✓ person paying tax under composition scheme
- ✓ person deducting TDS
- ✓ person collecting TCS i.e. ECO
- ✓ OIDAR services supplier from a place o/s India to India



### b) Due Date

For Normal Taxpayer: 11th day of the succeeding month

For QRMP Taxpayer: 13th day of the succeeding month

### c) Kind of details of outward supplies

#### ➤ Invoice-wise Details:

- a) B2B Supplies
- b) inter-State supplies made to URP with Invoice value > Rs. 1,00,000

#### ➤ Consolidated Details

- a) Intra-State supplies made to URP for each rate of tax
- b) Inter-State supplies made to URP with Invoice value up to Rs. 1,00,000 for each rate of tax separately for each State

#### ➤ Debit and Credit Notes - Issued during the month for invoices issued previously

#### Note:

- Invoices can be uploaded any time during the tax period and not just at the time of filing of GSTR-1.
- Invoices can be modified/deleted any number of times till the submission of GSTR-1.

### d) Communication of details of GSTR-1 to the recipient of supply

The details of o/w supplies for a month furnished by the supplier are auto populated to the respective recipients in Part A of Form GSTR- 2A/Form GSTR-4A (in case of Composition Taxpayer)

### e) Rectification of errors

- Errors/omissions can be rectified in the period in which they are noticed.
- Time limit: Earlier of
  - 30th November of next FY, or
  - Date of filing Annual Return.

### f) Other Points

- GSTR-1 must be filed even for Nil activity (Nil Return required).
- Nil GSTR-1 can be filed via SMS using OTP verification.
- On voluntary GSTIN cancellation, GSTR-1 must be filed for the active period.
- If shifted to composition scheme, GSTR-1 is required only for the period as a normal taxpayer, and delayed filing is allowed for that period.

### g) Blocking Of GSTR-1 & IFF Filling

1. GSTR 3B of preceding tax period is not filed
2. GSTR-1 not filed for earlier tax periods
3. Has neither deposited the amount specified in the intimation nor has furnished a reply explaining the reasons for any amount remaining unpaid
4. Has neither paid the amount equals to the excess ITC as specified in the intimation nor has furnished a reply explaining the reasons for any amount remaining unpaid
5. He has not furnished the bank account details
6. Cannot file GSTR-1 after 3 years from due date



#### Rule 88C- Manner of dealing with the difference in liability reported in FORM GSTR-1 & GSTR-3B

- When there is a **discrepancy** between the tax liability declared in GSTR-1 and GSTR-3B, the taxpayer is intimated **by the proper officer**.
- The taxpayer has 7 days to either pay the differential tax liability along with interest or explain the discrepancy to the satisfaction of PO.
- If the taxpayer **fails to deposit the amount** or respond within the prescribed time or the officer is not satisfied with the explanation then amount shall be recoverable **as per the provisions of section 79**.

#### Rule 88D - Manner of dealing with the difference in ITC available in GSTR-2B and that availed in GSTR – 3B

- When there is a **discrepancy** between the ITC availed in GSTR-2B and GSTR-3B, the taxpayer is intimated **by the proper officer**.
- The taxpayer **has 7 days** to either pay the excess ITC availed along with interest or explain the discrepancy to the satisfaction of PO.
- If the taxpayer fails to deposit the amount or respond within the prescribed time or the officer is not satisfied with the explanation then amount shall be demanded **as per the provisions of section 73/74**.

#### GSTR 1A [Amendment return to GSTR-1]

- Allows taxpayers to make changes, corrections, and amendments to data filled in GSTR-1 for the same month before filing GSTR-3B.
- Filed electronically through the common portal directly or through a Facilitation Centre.
- Effect of changes is reflected in GSTR-3B of the same tax period.
- ITC for such changes is available in GSTR-2B of next tax period.
- No late fee as it is optional.
- Available after due/filing date of GSTR-1 till filing of GSTR-3B.
- Recipient's GSTIN cannot be changed

#### Furnishing details of inward supplies [Section 38]

- **Form GSTR-2A** – is a system generated **read only statement** of inward supplies for a recipient. This statement is updated on a real time basis.

- **Form GSTR-2B** – an **auto-drafted read only statement** containing the details of eligible ITC – is made available to recipient every month. It is a static statement and is available only once a month.
- It consists of details of outward supplies furnished by the suppliers in Form GSTR1, **other than a supplier who has opted for QRMP scheme**, between the day immediately after the due date of GSTR-1 for the previous month to the **due date of GSTR-1** for the month
- In case of monthly Form GSTR-1, the **cut-off date** is 00:00 hours on 12th of the relevant month to 23:59 hours, on **11th of the succeeding month**. Whereas for quarterly Form GSTR-1/IFF the cut-off date is 00:00 hours on 14th day of relevant month to 23:59 hours, on **13th day of succeeding month**.

#### Furnishing of returns under section 39

1. **GSTR 3B**
  - GSTR-3B is a simple return containing summary of outward supplies, inward supplies liable to reverse charge, eligible ITC, payment of tax etc. and does not require invoice-wise data.
  - Can be submitted electronically through the common portal directly or through a Facilitation Centre; Nil GSTR-3B can be filed through SMS using registered mobile number.
  - Can be filed monthly or quarterly.
  - **GSTR-3B Blocked:**
    - RP cannot furnish GSTR-3B if GSTR-1 or GSTR-3B for any previous tax periods is not furnished.
    - RP cannot furnish after 3 years from due date.
  - **Due Date:**
    - Monthly: on or before 20th of succeeding month
    - Quarterly (QRMP): on or before 22/24th of succeeding month
2. **Composition Supplier**
  - Composition suppliers are required to file annual return in FORM GSTR-4.
  - They are also required to furnish FORM GST CMP-08 for every quarter by 18th of succeeding month.
  - GSTR-4 due date: 30th June of succeeding FY.
  - Details:



- Consolidated details of outward supplies in GSTR-4 (not invoice-wise).
- Inter-State and intra-State inward supplies from RP and URP to be provided invoice wise.
- Time limit for furnishing statements/returns for pre-composition period: Till earlier of:
  - 30th Nov of next FY, or
  - Date of filing annual return.
- On withdrawal from composition scheme:
  - GST CMP-08: Till 18th of month succeeding the quarter of withdrawal.
  - GSTR-4: Till 30th April following end of FY of withdrawal.
  - Nil GST CMP-08 can be filed via SMS with OTP verification.
- 3. **GSTR-5 - Return for Non-Resident Taxable Persons**
  - NRTP has to file simplified monthly return (GSTR-5) for every calendar month or part thereof, containing details of outward and inward supplies.
  - **Due date:** Within 13 days after end of month or 7 days after expiry of registration, whichever is earlier.
  - NRTP should pay tax, interest, penalty, fees or any other amount till the last date of filing GSTR-5.
- 4. **GSTR-7 - Return for TDS [Section 39(3) read with rule 66]**
  - TDS Deductor must file GSTR-7 monthly.
  - **Due date:** 10th of the succeeding month.
  - Mandatory filing, even if no TDS deducted (Nil return).
  - TDS details are available to deductee, and amount can be used as credit in electronic cash ledger.
  - TDS certificate (GSTR-7A) to be issued within 5 days of depositing amount.
- 5. **GSTR – 8 - Statement for tax collection at source**
  - ECO liable to collect TCS shall furnish monthly statement in Form GSTR-8, containing details of supplies, returns and TCS amount.
  - **Due date:** 10th of succeeding month.
  - Details are available to supplier and TCS is credited to E-Cash Ledger.
  - ECO can rectify discrepancies in GSTR-8.
  - Time limit for rectification: Earlier of
    - 30th November of next FY, or

- Date of filing GSTR-9B.
- Cannot furnish GSTR-8 after 3 years from due date.

#### First Return [Section 40]

- There is a time lag between liability to registration and grant of registration.
- RP shall declare outward supplies of this period in the first return after registration.

#### Annual Return [Section 44 read with rule 80 of the CGST Rules]

##### 1. Who is Required to Furnish Annual Return

All RPs are required to file an annual return. However, following persons are not required to file the annual return:

- a) Casual taxable persons.
- b) NRTP
- c) ISD and
- d) Persons authorized to deduct/collect tax at source
- e) Person supplying OIDAR services from a place o/s India to India

##### 2. Due Date

31st December of the next FY

##### 3. Form for Annual Return GSTR 9

##### 4. Self-certified reconciliation statement

- ✓ Self-certified reconciliation statement will reconcile the value of supplies declared in the return furnished with the audited annual FS.
- ✓ All RPs are required to file furnish a self-certified reconciliation statement in Form GSTR-9C along-with annual return if their ATO > Rs. 5 crores.

Except

- a) Casual taxable persons
- b) NRTP
- c) Input service distributors
- d) Persons authorized to deduct/collect tax at source
- e) The department of CG/SG or a local authority, whose books of account are subject to audit by CAG

**Note:** RP shall not be allowed to furnish annual return after the expiry of 3 years from the due date of furnishing the said return or statement.





**Final Return [Section 45]****1. Who is Required to Furnish**

Every RP who is required to furnish return u/s 39(1) and whose registration has been surrendered or cancelled is required to file a final return electronically in Form GSTR-10 through the common portal.

**2. Time-limit**

The final return has to be filed within 3 months of the:

- Date of cancellation or
- Date of order of cancellation whichever is later.

**GSTR 11 [Details of inward supplies of persons having UIN]**

Every person to whom UIN has been allotted shall furnish the details of the inward supplies of taxable G/S on which refund of taxes has been claimed, in Form GSTR-11, along with application for such refund claim.

**Default/Delay in furnishing return [Sections 46 & 47]****Notice to Return Defaulters [Section 46]**

A notice shall be issued to RP who fails to furnish return under

- section 39 [Normal Return] or
- section 44 [Annual Return] or
- section 45 [Final Return] or
- section 52 [TCS Statement].

The notice would require the RP to furnish the return within 15 days.

**Quarterly Return Monthly Payment (QRMP) Scheme**

- RP having ATO (PAN based) up to ₹5 cr. in PFY can opt for QRMP scheme.
- Conditions of Opt-in = Last Due return must be filed.
- QRMP option can be exercised GSTIN wise.
- Timeline for opting in/opting out of QRMP scheme:**  
opt QRMP between 1<sup>st</sup> day of 2<sup>nd</sup> Month of preceding quarter and last day of 1<sup>st</sup> month of relevant quarter

| Quarter        | Time Limit to Exercise                        |
|----------------|-----------------------------------------------|
| April/May/June | 1 <sup>st</sup> Feb to 30 <sup>th</sup> April |
| July/Aug/Sep   | 1 <sup>st</sup> May to 31 <sup>st</sup> July  |
| Oct/Nov/Dec    | 1 <sup>st</sup> Aug to 31 <sup>st</sup> Oct   |
| Jan/Feb/March  | 1 <sup>st</sup> Nov to 31 <sup>st</sup> Jan   |

5. Option of QRMP lapsed from following quarter when ATO exceeds ₹5 crores in current quarter.

6. **Voluntarily Opt-out** = Same manner as we avail QRMP

**7. Manner of Furnishing outward details:**

B2B Supplies → 1<sup>st</sup> & 2<sup>nd</sup> Month → IFF (Optional)

B2B Supplies → 3<sup>rd</sup> Month → GSTR-1

B2C Supplies → 1<sup>st</sup>/2<sup>nd</sup>/3<sup>rd</sup> Month → GSTR-1

Due Date of IFF → 13<sup>th</sup> of the succeeding month.

Due Date of GSTR-1 → 13<sup>th</sup> of the month succeeding the quarter

**8. Concept of Invoice Furnishing Facility (IFF):**

- IFF is not mandatory but an optional facility
- RP can furnish only B2B supplies under IFF for first 2 months of Quarter involving invoices, debit notes & credit note

**9. Manner of furnishing the GSTR-3B**

- South/West/Mid States = up to 22<sup>nd</sup> of month succeeding the Quarter
- North/East States = up to 24<sup>th</sup> of month succeeding the Quarter

**10. Payment of tax under QRMP scheme:**

- 1<sup>st</sup> & 2<sup>nd</sup> month of the Quarter = 25<sup>th</sup> day of the succeeding month
- 3<sup>rd</sup> month of the quarter = Due date of GSTR-3B

**11. Method of Payment under QRMP Scheme****Method 1 – Fixed Sum Method**

- ✓ **Quarterly Returns Filed in Last Quarter:** Deposit 35% of tax paid in last quarter using E-Cash Ledger
- ✓ **Monthly Returns Filed in Last Quarter:** Deposit 100% of tax paid in last month of the preceding Quarter using E-Cash Ledger

**Method 2 – Self Assessment Method**

Calculate Tax liability on Monthly basis and deposit amount payable

**Note:** No amount is required to be deposited if balance in E-cash ledger/E-credit ledger is adequate or when the tax liability is NIL.



### Goods & Service Tax Practitioners (GSTPs)

They are the people who can work for **compliance of GST** on behalf of the clients.

#### **Eligibility Criteria:**

Indian Citizen + Person of **sound Mind** + Not Adjudged **Insolvent** + Not convicted by Court

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- ✓ **Retired officer** of commercial tax or CBIC, who worked at not lower than rank of **Group-B** gazetted officer for a period of **more than or equal to 2 years** or
- ✓ Enrolled as **STP/TRP** in earlier tax laws for **more than or equal to 5 years** or
- ✓ Graduate/PG in commerce, law, banking or audit from **Indian university** or **Foreign Equivalent degree university** or
- ✓ Passed ICAI, ICSI or ICMAI **Final Exam** or
- ✓ Any **Other Exams** notified



#### **Activities of GSTPs**

1. **Furnish GST Returns**
2. **Furnish details for challan** and its deposit into E-Cash ledger
3. **Furnish Info for E-Way Bill Generation**
4. **Allowed to appear as Authorised Representative**
5. **File a Refund claim**
6. **File Application for Amendment/Cancellation of GST Registration**





**THANK**  
**YOU**